

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1493

By: Rosecrants

AS INTRODUCED

An Act relating to schools; creating the Growing Minds, Active Kids Act; declaring legislative intent; providing definitions; requiring school districts to incorporate forty minutes of daily recess for certain grades; encouraging thirty minutes of daily recess for certain grades; establishing daily recess requirements; specifying compliance for students with disabilities; providing an exemption; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 11-103.9c of Title 70, unless there is created a duplication in numbering, reads as follows:

A. This act shall be known and may be cited as the "Growing Minds, Active Kids Act".

B. It is the intention of the Oklahoma State Legislature through this act to focus on daily recess as essential for students as it provides a necessary break from academic work, allowing students to recharge both mentally and physically. Physical activity during recess helps improve focus, reduce stress, and

1 support overall physical health. It also encourages social
2 interaction where children learn important skills like teamwork,
3 conflict resolution, and communication. By giving students adequate
4 time to play and unwind, recess fosters better behavior in the
5 classroom and enhances students' ability to concentrate and learn
6 effectively.

7 C. As used in this section:

8 1. "Daily recess" means a scheduled break or breaks during the
9 school day that will allow students to engage in unstructured free
10 play or physical activity;

11 2. "District board of education" means the governing board of
12 each school district in Oklahoma; and

13 3. "Physical activity" means any bodily movement that uses
14 energy and is produced by skeletal muscles.

15 D. School districts shall incorporate physical activity into
16 the school day by providing at least forty (40) minutes for daily
17 recess to students in full-day prekindergarten, kindergarten, and
18 grades one through five. For grades six through eight, at least
19 thirty (30) minutes for daily recess is strongly recommended. Each
20 district board of education shall establish the timing of the daily
21 recess. The daily recess required by this subsection may be broken
22 up into segments that best fit the schedules of each school
23 district.

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1 1. The daily recess provided for in this section shall be in
2 addition to the weekly sixty (60) minute physical education
3 requirements set forth in subsections B and C of Section 11-103.9 of
4 Title 70 of the Oklahoma Statutes.

5 2. The daily recess shall occur outside the school building
6 unless weather or other conditions require it to occur inside.

7 3. For students with disabilities, the daily recess shall
8 comply with the individualized education program (IEP) or Section
9 504 plan of the student.

10 4. Virtual charter schools shall be exempt from the
11 requirements of this section.

12 SECTION 2. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

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